

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.21840 of 2023

Md. Akbor Hossen
.... Accused-Petitioner
-Versus-
The State
.... Opposite Party
Mr. Shah Newaz, Advocate
.... For the petitioner
Mr. Sujit Chatterjee, D.A.G. with
Ms. Farhana Afroze Runa, A.A.G.
Mr. Md. Abdul Aziz Masud, A.A.G.
Mr. Md. Shamim Khan, A.A.G.
... For the State

Heard and Judgment on 31.01.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Begumganj Model Police Station Case No.24 dated 14.04.2022 corresponding to G.R. Case No.721 of 2022 under Sections 147/148/149/324/307/302/506(2)/114 of the Penal Code, 1860 now pending in the Court of learned Chief Judicial Magistrate, Noakhali

and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that in this case under Section 302 of the Penal Code it has been alleged that the accused person armed with pistol, bonduk, gun and ramda attacked Abu Zafar and co-accused Rimon fired a gun shot at above Abu Zaher but the cartridge hit his baby daughter victim Taskia Akhter Jannat causing her death.

Mr. Shah Newaz, learned Advocate for the petitioner submits that the name of the petitioner stands at serial No.4 in the FIR. But no specific overact has been attributed to him. Co-accused Rimon has made a confession under Section 164 of the Code of Criminal Procedure where he has stated that the petitioner was merely present in the place of occurrence. The petitioner is in custody in connection of this case since 21.04.2022. But not a single prosecution witness has yet been examined.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State raises objection against granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out that from record that the name of the petitioner stands at serial No.4 in the FIR. It has been stated that gun shoot was fired by

co-accused Rimon causing the death of victim Taskia. The petitioner did not make any confession. Co-accused Rimon has made a confession where he stated that the petitioner was merely present in the place of occurrence.

On consideration of above materials on record we find substance in this petition under Section 498 of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute.

Let the accused petitioner Md. Akbor Hossen, son of Md. Shahab Ullah be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Noakhali.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER